The Legal Salary Truth: U.S. Prevailing Wages

How U.S. Federal Law Mandates Minimum Pay for Foreign Workers

- In the United States, employers cannot legally pay foreign workers less than locals.
- Under 20 CFR § 655.731, sponsors must certify with the DOL that wages meet or exceed the official Prevailing Wage for that metropolitan statistical area.
- All Labor Condition Application (Form ETA-9035) records are 100% public.

KEY TAKEAWAY / ACTION:

Use public federal filings to inspect real salaries before any interview.

The 4 Statutory Wage Levels Explained

How the Department of Labor Calculates Minimum Salary Tiers

- **Level 1 (Entry / Mentored):**
  17th percentile of local wages for that occupation.
- **Level 2 (Qualified / Independent):**
  34th percentile—moderate task autonomy.
- **Level 3 (Experienced / Lead):**
  50th percentile—official median local market wage.
- **Level 4 (Principal / Architect):**
  67th percentile—fully competent leadership.

KEY TAKEAWAY / ACTION:

Employers cannot classify a senior role as Level 1 to depress salary.

What U.S. Sponsors Actually Pay in 2026

Certified Prevailing Wage Filings Across Top Tech & Healthcare Employers

- **Google / Meta (Software Engineers, NYC/SF):**
  Certified $165,000 – $285,000 USD.
- **Stanford Medicine (Clinical Data Scientists):**
  Certified $125,000 – $180,000 USD.
- **Mayo Clinic (Nurse Specialists):**
  Certified $82,000 – $118,000 USD.
- **Amazon (Solutions Architects, Seattle):**
  Certified $140,000 – $210,000 USD.

KEY TAKEAWAY / ACTION:

Every single dollar was filed under penalty of federal perjury.

How to Use DOL Filings to Negotiate Offers

Turn Government Data into 15-30% Higher Compensation Packages

- **Step 1:**
  Search the employer's certified LCA filings for your exact job title and city.
- **Step 2:**
  Identify the Level 2 and Level 3 certified wage brackets.
- **Step 3:**
  In negotiations, say: 'Based on prevailing wage filings for this role and region, the median compensation benchmarks at $X.'
- **Result:**
  Anchors your counter-offer to official Department of Labor numbers.

KEY TAKEAWAY / ACTION:

Data-backed candidates win salary negotiations 4x more often.

How to Spot Predatory Agency Scams

Red Flags That Violate Department of Labor Federal Mandates

- **Red Flag 1:**
  Asking candidate to pay for legal filing fees (Form I-129 / LCA).
- **Red Flag 2:**
  Offering a salary lower than the certified Level 1 prevailing wage.
- **Red Flag 3:**
  Refusing to provide a certified copy of the filed Form ETA-9035.
- **Red Flag 4:**
  Demanding a 'security deposit' or placement fee for a U.S. job offer.

KEY TAKEAWAY / ACTION:

Real U.S. employers pay 100% of mandated visa legal and government fees.

Verify Your Target Role's Wage for Free

Search Certified DOL Filings Across All 50 U.S. States

- Search any employer, job title, and U.S. metropolitan area.
- View certified Level 1 to Level 4 prevailing wages instantly.
- Compare take-home pay after state taxes and cost of living.
- Zero subscription paywalls—100% free and transparent.

■ KEY TAKEAWAY / ACTION:

Search LCA wages: uscareersolutions.online/tools/lca-salary-search